

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
SEPTEMBER 23, 2026
8:30 a.m.

4. LAUREN RUSSELL V. MATTHEW CADENA

SFL20210110

This matter is before the court for a five-year dismissal hearing under Code of Civil Procedure section 583.310, which provides, “[a]n action shall be brought to trial within five years after the action is commenced against the defendant.” (Code Civ. Proc., § 583.310.) The action was filed on August 06, 2021.

The matter was previously set for hearing on August 19, 2026. However, the court continued the August 19 hearing to September 23, 2026, finding that the court had provided insufficient notice of the August 19, 2026, hearing date. The court mailed Petitioner a copy of its minute order issued August 19, 2026, to Petitioner’s address on file; however, the mail was returned undeliverable.

Pursuant to Code of Civil Procedure section 583.310, the court dismisses the action without prejudice.

TENTATIVE RULING #4: PURSUANT TO CODE OF CIVIL PROCEDURE SECTION 583.310, THE COURT DISMISSES THE ACTION WITHOUT PREJUDICE. NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07.